

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 662

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO MILK TESTING; AMENDING SECTION 37-506, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE METHOD OF TESTING MILK AND CREAM; AMENDING SECTION 37-516, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE RULES FOR ADMINISTRATION AND DEFINITIONS OF DIRECTOR AND DEPARTMENT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 37-506, Idaho Code, be, and the same is hereby amended to read as follows:

37-506. METHOD OF TESTING MILK AND CREAM. (1) All milk and cream purchased or sold in the state of Idaho at a price based ~~upon~~ on or determined by the milkfat, protein, lactose, solids nonfat, or somatic cell counts thereof, or by any other quality parameter or other analyte thereof, shall be tested by methods approved by the director of the department of agriculture of the state of Idaho.

(2) Samples must be taken from every shipment of milk and cream by a milk hauler authorized by the department pursuant to chapter 3, title 37, Idaho Code. Accurate thermometers must be provided at all times. Milk and cream samples must be protected and in a tamper-proof place between thirty-three (33) and forty-five (45) degrees Fahrenheit.

(3) Such samples may be examined and tested by the buyer, seller, or department of agriculture at any time. The department ~~of agriculture~~ is authorized to conduct audits of a person's, corporation's, cooperative's, or company's payments for milk or cream to determine if such payments comply with established requirements.

SECTION 2. That Section 37-516, Idaho Code, be, and the same is hereby amended to read as follows:

37-516. RULES FOR ADMINISTRATION -- "DEPARTMENT" AND "DIRECTOR" DEFINED. (1) As used in this chapter:

(a) "Department" means the Idaho state department of agriculture.

(b) "Director" means the director of the department or the director's authorized designee.

(2) ~~The director of the department of agriculture is empowered to prescribe rules and regulations, subject to legislative approval, in the administration of this act chapter not inconsistent with its provisions. The term "department," as used in this act, means the department of agriculture.~~

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.